

Court No. - 39

Case :- WRIT - C No. - 520 of 2017

Petitioner :- Takesh Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Surendra Kumar Tripathi

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

The father of the petitioner had taken an electricity connection from the respondent Dakshinanchal Vidyut Vitran Nigam Ltd. Certain dues were not paid and the father expired on 27 February 2015. This petition has been filed by one son to assail the recovery proceedings. A representation has been filed by the petitioner for depositing half the amount and the remaining half by his brother. Learned counsel for the petitioner has, however, urged that the petitioner may be permitted to deposit the amount in instalments.

Ms. Surangama Sharma, learned counsel for the respondents has pointed out that the petitioner can avail the remedy available under clause 5.14 of the Electricity Supply Code for depositing the amount in instalments.

The petitioner can avail of the remedy provided for under clause 5.14 of the Code. Leaving it open to the petitioner to do so, we dispose of this petition.

Order Date :- 9.1.2017

praveen.

(Dilip Gupta,J.)

(Siddhartha Varma,J.)